

**IN THE HIGH COURT FOR THE STATE OF TELANGANA
AT HYDERABAD**

THE HONOURABLE SMT. JUSTICE JUVVADI SRIDEVI

CRIMINAL APPEAL No.1659 of 2017

DATED: 05TH AUGUST, 2026

Between:

The State of Telangana

...Appellant

AND

Chikkudu Shekar

...Respondent

J U D G M E N T:

This Criminal Appeal has been preferred by the State, aggrieved by the Judgment dated 23.06.2016 passed by the learned Judicial First Class Magistrate, Jangaon in C.C. No.4 of 2022, whereby the learned Magistrate acquitted the accused of the offences punishable under Sections 304-A and 337 of the Indian Penal Code (for short, "IPC").

02. The case of the prosecution, in brief, is that on 10.12.2011, P.W.1 lodged a report stating that he, along with other villagers, commenced their journey at about 6:30 p.m. from Jangaon in a tractor bearing Registration No.AP 36 X 0735 attached to a trailer bearing Registration No.AP 36 X 0736, which was loaded with cement

electric poles, for their destination at Mutharam Village. It is alleged that when they reached near Satya Sai Cotton Ginning Mill at about 7:45 p.m., the accused, who was driving the tractor, drove the vehicle in a rash and negligent manner, resulting in the tractor and trailer turning turtle. Consequently, the cement electric poles fell on the occupants, causing grievous injuries to them. The injured were immediately shifted to the hospital for treatment. However, one of the injured, namely, Kunsoth Srinu, succumbed to the injuries while being shifted to MGM Hospital, Warangal. Thus, it is alleged that the accused committed the offences punishable under Sections 304-A and 337 of IPC.

03. Heard Sri M.Vivekananda Reddy, learned Assistant Public Prosecutor for the Appellant-State. There is no representation on behalf of the respondent-accused and perused the material on record.

04. Learned Assistant Public Prosecutor for the State contended that the learned Magistrate erred in acquitting the respondent/accused without properly appreciating the oral and documentary evidence adduced by the prosecution. According to him, the prosecution had established beyond reasonable doubt that

the respondent/accused was guilty of the offences punishable under Sections 304-A and 337 of IPC. He further submitted that the tractor and trailer had turned turtle, thereby attracting the principle of *res ipsa loquitur*, and that the burden was on the accused to explain the circumstances under which the accident occurred. It was further submitted that P.Ws.1 to 3, who were travelling in the tractor at the relevant point of time, had clearly identified the accused as its driver, and therefore, there was no necessity to conduct a Test Identification Parade. According to the learned Assistant Public Prosecutor, if the accused disputed that he was driving the vehicle at the time of the accident, it was incumbent upon him to put forth such a specific defence. However, the learned trial Court failed to consider these material aspects in their proper perspective. Since the essential ingredients of the offences punishable under Sections 304-A and 337 IPC stood established by the evidence on record, the impugned judgment of acquittal is liable to be set aside and the respondent/accused is liable to be convicted for the said offences.

05. Having regard to the submissions advanced by the learned Assistant Public Prosecutor and upon a careful perusal of the impugned Judgment passed by the learned trial Court, this Court finds

that, on behalf of the prosecution, P.Ws.1 to 8 were examined and Exs.P1 to P9 were marked. Upon a comprehensive appreciation of the oral and documentary evidence available on record, the learned Magistrate rightly came to the conclusion that the prosecution had failed to establish the guilt of the respondent/accused beyond reasonable doubt.

06. Learned Magistrate has recorded cogent, convincing, and well-reasoned findings in Paragraph Nos.19 to 22 of the impugned Judgment. The learned trial Court observed that P.Ws.1 and 3 had categorically admitted in their evidence that they had no prior acquaintance with the accused. In such circumstances, the alleged identification of the accused by P.Ws.1 and 3 before the Police, merely by furnishing his descriptive particulars, was held to be doubtful. The learned trial Court further observed that the investigating agency failed to conduct a Test Identification Parade, which was essential to establish the identity of the accused as the driver of the offending vehicle, particularly when the witnesses were strangers to him.

07. Learned Magistrate further held that the Crime Details Form was not proved in accordance with law, as the panch witness

examined as P.W.5 did not support the prosecution case and was declared hostile. The learned trial Court also took note of the fact that the owner of the offending vehicle was not examined during the course of investigation or at the trial to establish that the accused was driving the vehicle at the relevant point of time. Furthermore, the Investigating Officer neither seized the driving licence of the accused nor collected and produced the registration certificate, insurance policy, or any other relevant documents pertaining to the offending vehicle to establish the nexus between the accused and the commission of the alleged offences.

08. In view of these material deficiencies and serious lapses in the investigation, the learned Magistrate rightly concluded that the prosecution had failed to establish the identity of the accused as the driver of the offending vehicle and, consequently, failed to prove his guilt beyond all reasonable doubt. This Court finds no infirmity, perversity, or illegality in the appreciation of evidence or the conclusions arrived at by the learned trial Court warranting interference in the impugned Judgment of acquittal.

09. In cases of acquittal, the Hon'ble Supreme Court in **Ravi Sharma v. State (Government of NCT of Delhi) and another**¹, held that while dealing with an appeal against acquittal, the appellate Court has to consider whether the trial Court's view can be termed as a possible one, particularly when evidence on record has been analyzed. The reason is that an order of acquittal adds up to the presumption of innocence in favour of the accused. Thus, the appellate court has to be relatively slow in reversing the order of the trial court rendering acquittal.

10. In **Ghurey Lal v. State of Uttar Pradesh**² the Hon'ble Supreme Court after referring to several Judgments regarding the settled principles of law and the powers of appellate Court in reversing the order of acquittal, held at para 70, as follows:

"70. In the light of the above, the High Court and other appellate Courts should follow the well-settled principles crystallized by number of Judgments if it is going to overrule or otherwise disturb the trial court's acquittal."

1. The appellate court may only overrule or otherwise disturb the trial court's acquittal if it has "very substantial and compelling reasons" for doing so.

A number of instances arise in which the appellate court would have "very substantial and compelling reasons" to

¹ (2022) 8 Supreme Court Cases 536

² (2008) 10 Supreme Court Cases 450

discard the trial court's decision. "Very substantial and compelling reasons" exist when:

i) The trial court's conclusion with regard to the facts is palpably wrong:

ii) The trial court's decision was based on an erroneous view of law;

iii) The trial court's judgment is likely to result in "grave miscarriage of justice";

iv) The entire approach of the trial court in dealing with the evidence was patently illegal;

v) The trial court's judgment was manifestly unjust and unreasonable;

vi) The trial court has ignored the evidence or misread the material evidence or has ignored material documents like dying declarations/report of the ballistic expert, etc.

vii) This list is intended to be illustrative, not exhaustive.

2. The appellate court must always give proper weight and consideration to the findings of the trial court.

3. If two reasonable views can be reached one that leads to acquittal, the other to conviction the High Courts/appellate courts must rule in favour of the accused."

11. For the foregoing reasons as well as the principles laid down by the Hon'ble Apex Court in the Judgments cited supra, the learned Magistrate has rightly acquitted the respondent-accused for the offences under Sections 304-A and 337 of the IPC. Hence, this Court does not find any grounds to interfere with the well reasoned Judgment of the learned Magistrate.

12. Accordingly, the Criminal Appeal is dismissed. There shall be no order as to costs.

As a sequel, miscellaneous petitions, pending if any, shall stand closed.

Date: 05-AUG-2026
KHRM

JUVVADI SRIDEVI, J